

STATE OF NEW YORK

8634--B

2025-2026 Regular Sessions

IN ASSEMBLY

May 22, 2025

Introduced by M. of A. LEE, LASHER, McDONALD, SHRESTHA, ROSENTHAL, REYES, COLTON, GALLAGHER, BENDETT, LEVENBERG, RAJKUMAR, SCHIAVONI, BORES, SEAWRIGHT, BRONSON, MORENO, SHIMSKY, WRIGHT, MAGNARELLI, DILAN, K. BROWN -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to establishing maximum contaminant levels and a hazard index in drinking water for certain per- and polyfluoroalkyl substances (PFAS)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 1112 of the public health law is amended by adding
2 a new subdivision 12-a to read as follows:

3 12-a. a. The commissioner shall:

4 (i) modify the existing maximum contaminant level for perfluorooctane
5 sulfonic acid (PFOS) and perfluorooctanoic acid (PFOA) to be no higher
6 than 4 parts per trillion; and

7 (ii) establish a maximum contaminant level no higher than 10 parts per
8 trillion (ppt) for perfluorononanoic acid (PFNA), perfluorohexane sulfo-
9 nate (PFHxS), and hexafluoropropylene oxide dimer acid (HFPO-DA, also
10 known as GenX).

11 b. The commissioner shall determine and report to the governor and the
12 legislature by May first, two thousand twenty-eight, what additional
13 requirements, if any, are warranted to address cumulative exposure to
14 multiple per- and polyfluoroalkyl substances, including but not limited
15 to, the substances listed in paragraph a of this subdivision.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 c. The commissioner shall require that public water systems comply
2 with the requirements of the maximum contaminant levels required by this
3 subdivision by May first, two thousand twenty-nine.

4 § 2. This act shall take effect one year after it shall have become a
5 law. Effective immediately, the addition, amendment and/or repeal of any
6 rule or regulation necessary for the implementation of this act on its
7 effective date are authorized to be made and completed on or before such
8 effective date.